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File No.: EXP202312535

RESOLUTION FOR TERMINATION OF THE PROCEDURE BY RECOGNITION OF RESPONSIBILITY AND VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On December 16, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against A.A.A. (hereinafter, A.A.A.), through the agreement transcribed below:

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File No.: EXP202312535

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 06/07/2023, a written complaint was submitted to this agency by B.B.B. (hereinafter, the complainant) against A.A.A. with ***NIF.1 (hereinafter, the respondent), for a possible violation of the provisions of personal data protection regulations.

The reasons on which the complaint is based are as follows:

On ***DATE.1, the complainant filed a complaint against the City Council (...) before the Electoral Board for conducting an electoral act (...) on the day of reflection. On ***DATE.2, the Electoral Board issued a resolution dismissing the complaint.

The complainant claims that on the same day the City Council was notified of the dismissal resolution, ***POSITION.1 (A.A.A.) made its content public on his personal Facebook profile, revealing the identifying data of the complainants.

Finally, the complainant states that (...) to obtain the disputed document, indicating that he would not have had access to it if it were not for his privileged position.

Along with the complaint, the following documentation is provided:

- Document No. 1. Copy of the complaint filed on ***DATE.1 by the complainant before the Central Electoral Board against the City Council (...).
- Document No. 2. Copy of the Agreement issued by the Electoral Board of ***LOCALITY.1 on ***DATE.2, which states that "(...)". It contains the following personal data of the complainant:
 - o Name and surname: B.B.B.
- Document No. 3. Screenshot of a post from the personal Facebook profile of the respondent (A.A.A.). Its content is as follows:

"(...)"

Along with the previous text, photographs of the Agreement issued by the Electoral Board of ***LOCALITY.1 on ***DATE.2 appear, with the names and surnames of the members of the Board erased, but not those of the complainants (***C.C.C. and B.B.B.).

SECOND: On 14/09/2023, this Agency verified that on ***DATE.2 the respondent published the content subject to the complaint on his personal Facebook profile (A.A.A.) and that it was still published.

THIRD: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (hereinafter LOPDGDD), on 20/09/2023, the complaint was forwarded to the City Council (...), for it to analyze and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 20/09/2023 as stated in the acknowledgment of receipt in the file.

On 16/10/2023, a response letter was received in this Agency from the City Council (...) in which the respondent, in the capacity of (...), states that the Agreement in question was not notified to the City

Council (...), but to the Electoral Board of (...). Furthermore, it clarifies that the communication was received due to his condition as (...), not by being ***POSITION.1, as it was also sent to "more people who have nothing to do with (...) but with the electoral process."

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It also alleges that opinions from various Electoral Boards are published on the website of the Central Electoral Board and that these are public, so the published record has this consideration.

In its response, the respondent does not provide any documentation that substantiates the alleged factual circumstances.

FOURTH: On 06/10/2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

LEGAL GROUNDS

I

Competence and Procedure

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

Article 4 "Definitions" of the GDPR defines the following terms for the purposes of the Regulation:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;"

"2) 'processing': any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction;"

"7) 'data controller' or 'controller': the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing; where the purposes and means of processing are determined by Union law or the law of the Member States, the controller or the specific criteria for its designation may be provided for by Union law or the law of the Member States;"

In the present case, pursuant to Article 4.1 of the GDPR, the disclosure of the name and surname of the complainant in the publication of the personal profile on the social network Facebook of the respondent constitutes processing of personal data; as it identifies or makes identifiable (...).

The respondent carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

III

Lawfulness of the Processing of Personal Data

The principles governing processing are enumerated in Article 5 of the GDPR. In this regard, paragraph 1 letter a) states that: "Personal data shall be:

a) processed lawfully, fairly, and in a transparent manner in relation to the data subject (lawfulness, fairness, and transparency);

(...)”

The principle of lawfulness is primarily regulated in Article 6 of the GDPR. The circumstances that allow for the consideration of the processing of personal data as lawful are enumerated in Article 6.1 of the GDPR:

1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;

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d) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

e) the processing is necessary for the purposes of legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or the fundamental rights and freedoms of the data subject which require the protection of personal data, in particular when the data subject is a child.

The provision in paragraph f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

In this regard, Recital 40 of the GDPR states that “For processing to be lawful, personal data must be processed with the consent of the data subject or on another legitimate basis laid down by law, whether in this Regulation or by virtue of another Union or Member State law to which this Regulation relates, including the necessity of complying with a legal obligation to which the data controller is subject or the necessity of performing a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract.”

In the specific case examined, as indicated, the respondent published on their personal profile on the social network Facebook (A.A.A.) a text along with photographs of the Agreement issued by the Electoral Board of ***LOCALITY.1 on ***DATE.2. In the publication, personal data relating to the names and surnames of the complainants can be read, among which is the respondent (B.B.B.).

In their response to the transfer, the respondent indicated that they accessed the Agreement in question through (...), not by being ***POSITION.1, as it was also sent to “more people who have nothing to do with (...) but with the electoral process.”

Upon examining the documentation in the administrative file, there are indications that the data processing carried out by the respondent is not covered by any of the legal grounds listed in Article 6.1 of the GDPR.

Consequently, in accordance with the evidence available at this moment in the initiation of sanctioning procedure agreement, and without prejudice to what results from the instruction, it is considered that the known facts could constitute an infringement, attributable to the respondent, for violation of Article 6.1 of the GDPR.

IV

Classification and qualification of the infringement of Article 6.1 of the GDPR

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If confirmed, the aforementioned infringement of Article 6.1 of the GDPR could imply the commission

of the infringement classified in Article 83.5 of the GDPR which under the heading “General conditions for the imposition of administrative fines” provides:

“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)”

For the purposes of the limitation period, Article 72.1 “Very serious infringements” of the LOPDGDD states:

“1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a limitation period of three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following: (...)

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679 being met; (...)”

V

Proposal for sanction for the infringement of Article 6.1 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment in the initiation of sanctioning procedure agreement, and without prejudice to what results from the instruction, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 6.1 of the GDPR, allows for an initial administrative fine of €500 (five hundred euros).

VI

Adoption of measures

If the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specific manner and within a C/ Jorge Juan, 6

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specified deadline...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR. Specifically, the following possible measures are proposed to be adopted within a period of 10 working days:

- The removal of the content published on the personal profile of the social network Facebook of the respondent (A.A.A.) that is the subject of the complaint.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the resolution that concludes this procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Furthermore, it is reminded that neither the acknowledgment of the infringement committed nor, if applicable, the voluntary payment of the proposed amounts, exempts the obligation to adopt the necessary measures to cease the conduct or to correct the effects of the infringement committed and to demonstrate to this Agency compliance with that obligation.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against A.A.A., with ***NIF.1, for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5.b) of the GDPR.

SECOND: TO APPOINT D.D.D. as the instructor and E.E.E. as the secretary, indicating that they may

be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate for Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be an administrative fine of €500 (five hundred euros), without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to A.A.A., with ***NIF.1, granting a hearing period of ten working days for them to submit allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the file number that appears in the heading of this document.

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If no allegations are made regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

In accordance with the provisions of Article 85 of the LPACAP, you may acknowledge your responsibility within the period granted for making allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at €400 (four hundred euros), resolving the procedure with the imposition of this sanction.

Likewise, you may, at any time prior to the resolution of this procedure, make a voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at €400 (four hundred euros), and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures. The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations regarding the initiation of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at €300 (three hundred euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or renunciation of any administrative action or appeal against the sanction.

For these purposes, in the event of opting for any of them, you must send to the General Subdirectorate of Data Inspection an express communication of the withdrawal or renunciation of any administrative action or appeal against the sanction, indicating which of the two reductions you are opting for or if it is for both.

If you choose to proceed with the voluntary payment of any of the amounts indicated above (€400 or €300), you must make it effective by depositing it into account no. IBAN:

ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

You must also send the proof of payment to the General Subdirectorate of Inspection along with the express communication of the withdrawal or renunciation of any administrative action or appeal against the sanction to continue with the procedure in accordance with the amount deposited.

The sanctioning procedure will have a maximum duration of twelve months from the date of the initiation agreement or, if applicable, from the draft initiation agreement.

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Once this period has elapsed, it will expire, and consequently, the file of actions will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On January 16, 2025, A.A.A. proceeded to pay the sanction in the amount of €300.00, making use of the two reductions provided for in the previously transcribed initiation agreement, which implies the acknowledgment of responsibility in relation to the facts referred to in the initiation agreement and its legal qualification.

THIRD: A.A.A. has expressly renounced any administrative action or appeal against the sanction.

FOURTH: The initiation agreement transcribed above stated that, if the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the cited Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified period...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the initiation agreement is warranted.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, and the provisions..."

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regulatory provisions issued in its development and, insofar as they do not contradict them, with a subsidiary character, by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when a pecuniary sanction can be imposed

alongside a non-pecuniary sanction but the latter has been justified as inappropriate, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except concerning the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which are cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation.”

III

Voluntary payment and acknowledgment of responsibility

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified initiation agreement informed about the possibility of acknowledging responsibility and making voluntary payment of the proposed sanction, which would entail two cumulative reductions of 20% each. With the application of these two reductions, the sanction would be set at 300.00 euros, and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

After the notification of the aforementioned initiation agreement, A.A.A. has proceeded to acknowledge responsibility and make voluntary payment of the sanction, availing themselves of the two reductions provided and expressly waiving any action or administrative appeal.

It should be noted that, according to the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the alleged responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their initiation form. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and any others arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the commission of the infringements and CONFIRM the sanctions determined in the dispositive part of the initiation agreement transcribed in this resolution.

The sum of the aforementioned amounts yields a total of 500.00 euros.

After A.A.A. has proceeded with the prompt payment and acknowledgment of responsibility, a reduction of 40% of the total mentioned is applied, resulting in a final amount of 300.00 euros.

SECOND: TO DECLARE the termination of procedure EXP202312535, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: TO ORDER A.A.A. to notify the Agency within 10 days from the date this resolution becomes final and enforceable, of the adoption of the measures described in the legal grounds of the initiation agreement transcribed in this resolution.

FOURTH: TO NOTIFY this resolution to A.A.A.

FIFTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility to the withdrawal or renunciation of any action or administrative appeal, the present authority accepts the express renunciation stated by A.A.A., consequently precluding the filing of an optional appeal for reconsideration against this resolution, all without prejudice to the possibility of resorting to the contentious-administrative jurisdiction.

Consequently, taking into account the provisions of Article 90 of the LPACAP, since there is no recourse in the administrative route due to the express renunciation, this resolution will be final and fully enforceable from its notification.

However, in accordance with the provisions of Article 90.3.a) of the LPACAP, the final resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally

communicate this fact by writing addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with the documentation.

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that certifies the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the precautionary suspension to be concluded.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

1259-180225

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to the vacancy of the positions of President and Deputy

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